

**IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE DIVISION, CAPE TOWN)**

CASE NO: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent

NOTICE TO ANTICIPATE RETURN DAY
(IN TERMS OF UNIFORM RULE 6(8))

KINDLY TAKE NOTICE that the Respondent hereby anticipates the return day of the Rule Nisi granted by the Honourable Acting Justice Mphego on 16 April 2026.

TAKE NOTICE FURTHER that the matter is set down for hearing on **FRIDAY, 24 APRIL 2026 at 10H00**, or as soon thereafter as the matter may be heard in the Urgent Motion Court.

THE GROUNDS FOR ANTICIPATION ARE AS FOLLOWS:

- 1. Procedural Right:** In terms of Uniform Rule 6(8) and Paragraph 7 of the Court Order dated 16 April 2026, the Respondent is entitled to anticipate the return day upon 24 hours' written notice.
- 2. Prior Notification:** Written notice of the intention to anticipate was served on the Applicant's attorneys of record on Wednesday, 22 April 2026 at 11h32, satisfying the 24-hour notice requirement.
- 3. Substantive Urgency & Irreparable Harm:** The Respondent is currently enduring a documented humanitarian crisis, including the obstruction of statutory benefits and a lack of

access to basic utilities (water/electricity). Every day the interim order remains in place without judicial oversight causes the Respondent irreparable harm and facilitates institutional attrition.

4. Failure of Good Faith: Despite the Applicant's claim of "extreme urgency" in obtaining the initial order, they have utilised the subsequent period for procedural stalling and "institutional silence," necessitating an immediate hearing to ensure the interests of justice.

5. Document Production: The hearing coincides with the deadline for the Applicant to produce forensic clinical documentation essential to the Respondent's defence and the public interest.

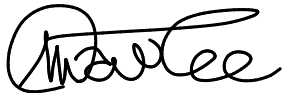
ANNEXURES:

Annexure NTA1: Email correspondence addressed to the Applicant's legal representatives, dated 20 April 2026.

Annexure NTA2: Email correspondence addressed to the Applicant's legal representatives, dated 22 April 2026.

Annexure WW6: Affidavit of Destitution deposed to by the Respondent.

DATED at CAPE TOWN on this 23rd day of APRIL 2026.



SR. WILBUR W MATTHEE

Respondent in Person

15 Bellevue Street, Voorbrug,
Cape Town, 7100
Email: info@ethichawks.co.za
Tel: 069 635 1435

TO: THE REGISTRAR OF THE HIGH COURT

Cape Town

AND TO: DENEYS ATTORNEYS

Attorneys for the Applicant

Per: **JASON WHYTE**

Email: jason.whyte@deneys.co.za; frances.barker@deneys.co.za



Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll

1 message

Wilbur William Matthee <wilburmat@gmail.com>
To: nhanekom@judiciary.org.za
Cc: jason.whyte@deney.co.za, frances.barker@deney.co.za, olebogeng.motlhaping@deney.co.za
Bcc: Sr Wilbur William Matthee <g.boy.willy@gmail.com>

Mon, 20 Apr 2026 at 11:55

To:
The Registrar, High Court of South Africa, Western Cape Division
[Registrar email address]

Cc:
Jason Whyte (Deneys Attorneys) – jason.whyte@deney.co.za
Frances Barker / Olebogeng Motlhaping (as copied in annexures) – [email addresses if available]

Subject: Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll

Dear Honourable Registrar,

I refer to the above matter and write in my capacity as the Respondent, acting in person.

1. Filing of Supplementary Answering Affidavit and Counter-Application

Pursuant to Uniform Rule 6(5)(e) and the practice confirmed in Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC), I hereby file the following documents with this Honourable Court:

- Supplementary Answering Affidavit (Final Consolidated) – responding to the Applicant’s founding papers and incorporating a counter-application for declaratory relief;
- Notice of Counter-Application for Declaratory Relief – which is unconditional and will proceed independently even if the Applicant withdraws its main application;
- Index of Annexures containing 22 supporting exhibits as referenced in the affidavit.

These documents are served simultaneously on the Applicant’s attorneys, Deneys.

2. Request to Enroll Counter-Application with Main Application

I respectfully request that the counter-application be enrolled for hearing simultaneously with the main application under the same case number, or on such other date as this Honourable Court may determine. In the event the main application is withdrawn, I request that the counter-application proceed on its own.

The declaratory relief sought is not abstract or hypothetical – it will:

- Break the administrative deadlock with the Department of Employment and Labour regarding my UIF benefits;
- Establish facts binding on the Labour Court through res judicata and estoppel;
- Vindicate my good faith and professional reputation, which the Applicant has attacked under oath.

3. Service on the Applicant’s Attorneys

A copy of this email and all filed papers is served on Deneys Attorneys at the email address above.

4. Request for Acknowledgment

Kindly acknowledge receipt of these filings and confirm the date on which the consolidated matter (main application + counter-application) will be placed on the roll.

I remain destitute, self-represented, and without income. My full circumstances are set out in Annexure WW6 (Affidavit of Destitution) filed herewith.

If your client fails to produce the documents by the above deadline without a valid, sworn explanation (e.g., legal privilege or impossibility), I will, without further notice, immediately file a notice to anticipate the return day in terms of:

- Uniform Rule of Court 6(8); and
- Paragraph 7 of the interim order dated 16 April 2026, which expressly grants me leave to anticipate the return day upon 24 hours' written notice to the applicant.

Upon anticipation, I will move for an order:

- Discharging the rule nisi and setting aside the interim interdict in its entirety;
- Granting the declaratory relief sought in my counter-application;
- Awarding a punitive costs order against your client on the scale as between attorney and client.

Your client has until Friday close of business to comply. Failure to do so will result in immediate court action.

Thank you for your assistance.

IMPORTANT NOTICE REGARDING MY EMAIL ADDRESS

Please be advised that my email address info@ethichawks.co.za has been suspended and is no longer active. All formal correspondence, including the documents demanded below, must be sent to my alternative email address:

wilburmat@gmail.com

I confirm that I will monitor this address for your response. Any correspondence sent to the suspended EthicHawks address will not be received.

Yours Professionally,

Wilbur William Matthee
Respondent (acting in person)
15 Bellevue Street, Voorbrug, Cape Town, 7001
Email: wilburmat@gmail.com
Mobile: 069 635 1435

Copy to: Jason Whyte, Deneys Attorneys (via email)

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**FORMAL NOTICE: ANTICIPATION OF RETURN DAY IN TERMS OF UNIFORM RULE 6(8)
– MATTHEE V AFROCENTRIC CASE NO. 2026-086906**

1 message

Wilbur Matthee <info@ethichawks.co.za>
To: jason.whyte@deneys.co.za
Cc: frances.barker@deneys.co.za, olebogeng.motlhaping@deneys.co.za
Bcc: wilburmat@gmail.com

Wed, 22 Apr 2026 at 11:32

TO: Jason Whyte/Legal Council

1. Your communication of 20 April 2026 is noted. Continued silence during a documented humanitarian crisis confirms a bad-faith reliance on procedural stalling.
2. Notice is hereby given of the intention to anticipate the return day under Uniform Rule 6(8).
3. Filing will occur on Thursday for a hearing on Friday, 24 April 2026.
4. The Court will be moved to distinguish between the Applicant’s self-created urgency and the Respondent’s substantive imminent danger.
5. The attempt to utilize the public holiday weekend as a procedural vacuum is neutralized.
6. I see you in court on Friday. Ensure the requested forensic documentation is produced.

Sr. Wilbur W Matthee
Specialist Registered Nurse | PGDip HSM (NQF 8)
Founder – EthicHawks Forensic Governance & Compliance

From : jason.whyte@deney.co.za

To : "Wilbur Matthee" <info@ethichawks.co.za>

Cc : "Frances Barker" <Frances.Barker@deney.co.za>,"Olebogeng Motlhaping" <Olebogeng.Motlhaping@deney.co.za>

Subject : RE: FORMAL NOTICE: ANTICIPATION OF RETURN DAY IN TERMS OF UNIFORM RULE 6(8)— MATTHEE V AFROCENTRIC CASE NO. 2026-086906 [IMAN-CPT_MATTERS.FID2264505]

Date : 22 Apr 2026 13:37

Dear Mr Matthee

We confirm receipt of your email sent at 11h32 today, 22 April 2026.

We draw your attention to paragraph 14.1 of your supplementary answering affidavit (which we point out was served on 20 April 2026) in which you state:

"I hereby formally invite and put the Applicant on notice to produce the following documents within 5 (five) days of service of this affidavit" (your own emphasis).

And in paragraph 14.3 you state:

"If the Applicant fails to comply without a valid legal basis, I will file a notice to anticipate the return day ..."

Accordingly, on your own terms, our client has until close of business on 28 April 2026 to elect whether it is able to accede to your demand regarding discovery. Our client is considering its response to you in accordance with this deadline.

You now appear to distance yourself from the representation made to our client under oath. Notwithstanding our client's views regarding the demand for discovery, your conduct now amounts to an abuse of court process and is vexatious in the extreme. Should you proceed to have the return date set down as threatened for Friday, 24 April 2026, we shall request the Judge presiding to adjourn the matter until 28 May 2026 and that you be ordered to pay our client's wasted costs on the attorney-client scale.

Kindly be guided accordingly.

Kind regards

Jason Whyte | Director
jason.whyte@deney.co.za

Deney Cape Town, South Africa
9th floor, 117 on Strand, 117 Strand Street, Cape Town 8001, South Africa
Tel: +27 21 405 1208 | Mobile: +27 83 236 3059

From : info@ethichawks.co.za
To : <jason.whyte@deney.co.za>
Cc : <frances.barker@deney.co.za>,<olebogeng.motlhaping@deney.co.za>
Subject : RE: Notice to Anticipate Return Day – Case No: 2026-086906
Date : 22 Apr 2026 15:03

Mr. Whyte,

1. Your characterization of the Respondent’s conduct as "vexatious" is noted and rejected.
2. Your attempt to conflate a discovery deadline with a Rule 6(8) anticipation is a fundamental legal error. There are currently two distinct "clocks" governing this matter, and they operate on separate tracks:
 - (a). The Discovery Clock: The 5-day invitation for document production pertains to the Merits of the case. It is a timeline for trial preparation.
 - (b). The Emergency Clock: The Notice to Anticipate under Uniform Rule 6(8) pertains to the Interim Status of the case. It is a timeline for Survival.
3. The "Discovery Clock" does not—and cannot—arrest the "Emergency Clock." A procedural invitation for discovery is not a waiver of the statutory right to seek immediate judicial relief from an interim order that facilitates a humanitarian crisis. The Respondent’s right to dignity, access to water, and survival is not subject to your client’s administrative convenience or a 5-day election period.
4. The Applicant’s claim of "extreme urgency" to obtain the ex parte order on 16 April is now in direct conflict with your current request for a delay. This contradiction confirms that the Applicant's "urgency" was a tactical label, whereas the Respondent's urgency—documented by 48 hours without food and a lack of basic utilities—is a substantive, physical reality.
5. Be advised that the strategy of "litigation attrition"—including the obstruction of statutory benefits and the resulting state of destitution—is now a matter of record. Your threats of punitive costs against a respondent in a state of documented imminent danger further evidence the Applicant's bad faith and will be placed before the court.
6. The Respondent will not be intimidated into a monthly adjournment while in a state of constitutional emergency. The hearing proceeds on Friday, 24 April 2026. The High Court will be moved to weigh your client’s desire for corporate secrecy against the Respondent’s right to exist.
7. The "5-day deadline" for documents remains an active forensic demand. If the Applicant chooses to withhold those documents on Friday while maintaining a gag order, you do so at the risk of an adverse judicial inference.

Kindly be guided accordingly.

Sr. Wilbur W Matthee
Specialist Registered Nurse
Respondent in Person

AFROCENTRIC HEALTH
SALARIES DEPARTMENT
P.O. BOX 1101
FLORIDA GLEN, 1708

DATE 19 January 2026

**** If the employer is not resident in the RSA, or is a body corporate not registered in the RSA, an authorised person must carry out the duties of the employer in terms of this Act**

D* Remuneration means actual basic salary plus payment in kind (**Declare actual gross salary**) out the duties of the employer in terms of this Act.

If paid Weekly, convert wages to monthly salary (weekly wages X 52/12)

E* Total Hours Worked ie. Actual hours worked during the month (**only** applicable for employees that are paid per hour)

Employers may also submit these details electronically from payrolls or on the UIF's website at www.labour.gov.za

Tel. no (012) 337 1680/1700

① Only Applicable for Commercial Employers

Temporary employees (less than 24 hours per month)
Learners in terms of the Skills Development Act
Employees in the National and Provincial spheres of Government
Employees who are repatriated at the end of their contract of service
Employees who earn commission only
No income paid for the payroll period
Employees in receipt of an Old Age Pension from the State.
Employees who receive a pension payment from Employer
Above the ceiling (Old Act)

2	Deceased	6	Resigned	10	Illness/Medically boarded
3	Retired	7	Constructive Dismissal	11	Retrenched/Staff Reduction
4	Dismissed	8	Insolvency/Liquidation	12	Transfer to another Branch
5	Contract Expired	9	Maternity/Adoption	13	Absconded